

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS----- X
VANESSA JOHN,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
KENNETH ANDERSON, Shield No. 20515, SERGEANT
DANI GALLAGHER and POLICE OFFICERS JOHN
DOES #1-10 (names and numbers of whom are unknown at
present), and other unidentified members of the New York
City Police Department,Defendants.
----- X

SUMMONS

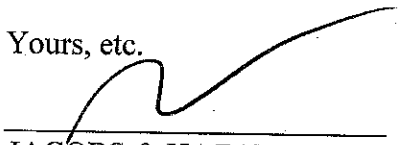
Index No.:

The Basis of Venue is:
Location of IncidentPlaintiff designates Kings
County as the place of trial.**To the above named Defendants:**

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
April 28, 2015

Yours, etc.


JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
11 Park Place, 10th Floor
New York, New York 10007
(212) 577-2690TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
Police Officer Kenneth Anderson, Shield No. 20515, 77th Precinct
Sergeant Dani Gallagher, 77th Precinct

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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VANESSA JOHN,

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INDEX NO.:

VERIFIED COMPLAINT

THE CITY OF NEW YORK, POLICE OFFICER
KENNETH ANDERSON, Shield No. 20515, SERGEANT
DANI GALLAGHER and POLICE OFFICERS JOHN
DOES #1-10 (names and numbers of whom are unknown at
present), and other unidentified members of the New York
City Police Department,

JURY TRIAL DEMANDED

Defendants.
----- X

Plaintiff VANESSA JOHN, by her attorneys, Jacobs & Hazan, LLP, as and for her
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On January 29, 2014, at approximately 12:00 p.m., plaintiff Vanessa John was lawfully present inside of her home located at 1063 Pacific Street, Apt. 3B, Brooklyn, New York, when the individually named defendant police officers and several "John Doe" New York City police officers from the 77th Precinct, entered plaintiff's home, and proceeded to unlawfully seize, unlawfully search, falsely arrest, falsely imprison, assault, and batter plaintiff. The defendant police officers also caused plaintiff to miss school and work and suffer from emotional and psychological injuries. Plaintiff was deprived of her constitutional and common law rights when the individual defendants unlawfully searched, confined, and falsely arrested plaintiff in violation of the Fourth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York

PARTIES

2. Plaintiff Vanessa John is a resident of the state of New York.

3. Police Officer Kenneth Anderson, Shield No. 20515, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. Police Officer Kenneth Anderson, Shield No. 20515, is and was at all times relevant herein, assigned to the 77th Precinct.

5. Police Officer Kenneth Anderson, Shield No. 20515 is being sued in his individual and official capacity.

6. Sergeant Dani Gallagher is being sued in his individual and official capacity.

7. Sergeant Dani Gallagher is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

8. Sergeant Dani Gallagher is and was at all times relevant herein, assigned to the 77th Precinct.

9. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

10. Police Officers John Does #1-10 are being sued in their individual and official capacities.

11. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

12. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

13. Plaintiff in furtherance of her causes of action brought pursuant to New York State law filed a Notice of Claims against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50.

14. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

15. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

16. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

17. On January 29, 2014, plaintiff Vanessa John lived at 1063 Pacific Street, Apt. 3B, Brooklyn, New York.

18. On or about January 29, 2014, at approximately 11:30 a.m., plaintiff was in her apartment when she received a phone call from her father that plaintiff's grandmother, whom she was very close to, passed away.

19. Upon learning of her grandmother's death, plaintiff began to cry.

20. Upon information and belief, a neighbor who could hear plaintiff cry called the New York City Police Department and reported the noise.

21. Some of the individually named defendant police officers arrived at plaintiff's apartment at approximately 12:00 p.m. and banged on plaintiff's front door.

22. Eventually, plaintiff approached her front door and asked who was there, to which the individually named defendant police officers identified themselves as police officers and demanded that plaintiff get on the floor.

23. Plaintiff immediately got to the floor.

24. The defendant police officers then asked whether there was anyone else in the apartment and plaintiff responded that her husband, who was sleeping was also in the apartment.

25. The police officers demanded that plaintiff retrieve her husband from the bedroom so that he could lie on the floor of the hallway and plaintiff complied with the police officers' instructions and retrieved her husband.

26. Plaintiff and her husband own three dogs that began to bark because of the commotion.

27. The defendant police officers then ordered plaintiff and her husband to put the dogs in the bathroom and close the door.

28. Plaintiff and her husband complied with the officers' request, placed the dogs in the bathroom, closed the bathroom door, and returned to lay down on the floor of the hallway.

29. The defendant police officers then demanded that plaintiff open the door to the apartment and plaintiff immediately complied with the officers' request and opened the door.

30. The individually named police officer defendants told plaintiff to get back on the floor and then proceeded to handcuff plaintiff without probable cause or legal justification.

31. The defendant police officers brought plaintiff out of her apartment against her will, and only wearing a t-shirt in the freezing cold.

32. Without reasonable suspicion, probable cause, or any legal justification, the defendant police officers then searched plaintiff's entire apartment without her consent.

33. At no time were any illegal contraband or substances found in plaintiff's possession, custody, or control.

34. Plaintiff was placed in a police vehicle in handcuffs and told the defendant police officers, who began asking her questions, that she had just received extremely upsetting news that her grandmother had passed and that nothing else was going on.

35. Nonetheless, the defendant police officers transported plaintiff to the 77th Precinct without cause or legal justification.

36. Numerous neighbors and other passer-bys witnessed plaintiff being led out of her apartment and into the police vehicle in handcuffs.

37. At no time did plaintiff Vanessa John commit a crime, not did the defendant police officers have probable cause to believe plaintiff committed a crime.

38. While at the precinct, the defendant police officers falsely communicated to the Brooklyn District Attorney's Office that plaintiff had committed a crime.

39. After approximately 10 hours in a holding cell at the 77th precinct, plaintiff was transported to Brooklyn Central Booking and placed into a filthy holding cell.

40. After approximately 28 hours in police custody, on January 30, 2014 at approximately 4:00 p.m., plaintiff was arraigned and released on her own recognizance.

41. As a result of the defendant police officers' unlawful conduct, plaintiff was forced to miss class for her nursing degree bachelor's degree program on or about January 29, 2014, and miss work on or about January 30, 2014.

42. All charges against plaintiff were dismissed on July 29, 2014.

43. Thereafter, plaintiff began experiencing emotional and psychological symptoms as a result of the aforementioned incident, including loss of sleep, anxiety, fear, panic

attacks, and nightmares, for which plaintiff received medical and/or psychiatric treatment following the incident.

44. Plaintiff experienced humiliation and embarrassment because her neighbors and other acquaintances in the apartment building that saw plaintiff being led out of the building in handcuffs.

45. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable search, false arrest, and false imprisonment of plaintiff.

46. The unlawful search, seizure, false arrest and imprisonment of plaintiff by the individually named defendants caused plaintiff to sustain psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment and Fourteenth Amendment Rights

47. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 46 with the same force and effect as if more fully set forth at length herein.

48. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully searched, seized, and falsely imprisoned, in violation of plaintiff's right to be free of an unreasonable seizure and under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

49. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 48 with the same force and effect as if more fully set forth at length herein.

50. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

51. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York and the United States Constitution.

52. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

53. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

54. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Search

55. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 54 with the same force and effect as if more fully set forth at length herein.

56. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

57. Defendants lacked probable cause to search plaintiff and/or plaintiff's apartment.

58. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

59. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

60. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

61. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

62. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 61 with the same force and effect as if more fully set forth at length herein.

63. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, Vanessa John. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

64. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.

65. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FIFTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

66. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 65 with the same force and effect as if more fully set forth at length herein.

67. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

SIXTH CAUSE OF ACTION

Failure to Intervene

68. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 67 with the same force and effect as if more fully set forth at length herein.

69. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

70. Defendants failed to intervene to prevent the unlawful conduct described herein.

71. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, she was put in fear of her safety, and she was humiliated and subject to other physical constraints.

72. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

73. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

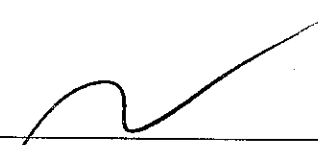
JURY DEMAND

74. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Vanessa John demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
April 28, 2015

By: 

STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
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(212) 577-2690

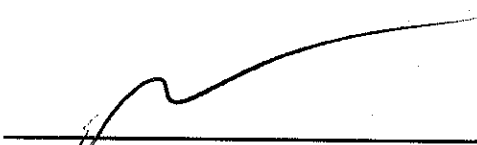
TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
Police Officer Kenneth Anderson, Shield No. 20515, 77th Precinct
Sergeant Dani Gallagher, 77th Precinct

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
April 28, 2015



STUART E. JACOBS